The essential difficulty is this. The whole conception of the Fundamental Rights is the protection of individual liberty and freedom. That is a basic conception and to know wherefrom it was derived you have to go back to European history from the latter days of the eighteenth century; roughly speaking, you may say from the days of the French Revolution which spread on to the nineteenth century. That might be said to be the dominating idea of the nineteenth century and it has continued and it is a matter of fundamental importance. Nevertheless, as the nineteenth century marched into the twentieth century and as the twentieth century went ahead, other additional ideas came into the field which are represented by our Directive Principles of State Policy. If in the protection of individual liberty you protect also individual or group inequality, then you come into conflict with that Directive Principle which wants, according to your own Constitution, a gradual advance, or let us put it another way, not so gradual but more rapid advance, wherever possible to a State where there is less and less inequality and more and more equality. If any kind of an appeal to individual liberty and freedom is construed to mean as an appeal to the continuation of the existing inequality, then you get into difficulties. Then you become static, un-progressive and cannot change and you cannot realize that ideal of an egalitarian society which I hope most of us aim at. These problems arise and I have mentioned them to the House, not because they arise out of the little amendment that I propose but at the back of these problems they are there and we have to come to grips with them. If this particular amendment can be somewhat varied I should welcome it. In the Select Committee or elsewhere some few words may perhaps make the meaning clearer which I have sought to put before the House and I would personally welcome it.

Then we come to the two main articles which have to be dealt with in this Bill. Article 19 deals with the Fundamental Rights regarding freedom of speech, etc. It has been said that this Government seeks to curb and restrict the freedom of the Press. Honourable Members are fully aware of the state of affairs today. I do not think there is any country in the world at the present moment where there is so much freedom – if I may use that word for the moment – in regard to Press publications as in India. I have